

Adventure Works Inc. – Retail Customer Terms and Conditions

- **Acceptance of Terms:** By purchasing products from Adventure Works Inc., whether in-store, online, or through any authorized sales channel, you agree to be bound by these Terms and Conditions. If you do not agree with any part of these terms, you should not complete your purchase.
- **Retail Sales Only:** These terms apply exclusively to retail customers purchasing products for personal, household, recreational, or gift purposes. Commercial purchases, wholesale transactions, and reseller agreements are governed by separate contractual arrangements.
- **Product Availability:** All products are subject to availability. Adventure Works Inc. reserves the right to limit quantities, discontinue products, substitute equivalent items when appropriate, or refuse orders where stock is unavailable. Product availability displayed online or in promotional materials is not guaranteed until your order has been confirmed.
- **Pricing:** All prices are displayed in the applicable local currency and include any taxes required by law unless otherwise stated. Prices are subject to change without prior notice. The price charged will be the price confirmed at the time your order is accepted.
- **Promotional Offers:** Promotional prices, discounts, coupons, loyalty rewards, and special offers are subject to their individual terms. Promotions cannot normally be combined unless expressly stated. Adventure Works Inc. reserves the right to modify or withdraw promotions at any time.
- **Order Acceptance:** Receipt of an order confirmation does not necessarily constitute acceptance of your order. Adventure Works Inc. reserves the right to cancel or refuse any order due to pricing errors, stock shortages, suspected fraud, payment issues, or any other reasonable business concern.
- **Payment:** Payment must be successfully authorized before products are shipped or released for collection unless an alternative payment arrangement has been agreed. Accepted payment methods may vary by location and sales channel.
- **Billing Information:** Customers are responsible for providing complete, accurate, and current billing and contact information. Adventure Works Inc. is not responsible for delays or failed deliveries resulting from incorrect customer information.
- **Delivery:** Estimated delivery dates are provided for convenience only and are not guaranteed unless expressly stated. Delivery times may vary due to weather, carrier delays, customs processing, supply chain disruptions, or other circumstances beyond reasonable control.
- **Risk of Loss:** Ownership and risk of loss generally pass to the customer upon delivery of the products to the delivery address or collection by the customer, subject to applicable consumer protection laws.
- **Inspection of Goods:** Customers should inspect products promptly upon receipt and notify Adventure Works Inc. within a reasonable period if products are damaged, defective, incomplete, or incorrectly supplied.

- **Returns:** Eligible products may be returned within the applicable return period, provided they are unused, in resalable condition, and accompanied by proof of purchase. Certain products, including customized items, personal care products, or other excluded goods, may not be eligible for return except where required by law.
- **Refunds:** Approved refunds will generally be issued using the original payment method unless otherwise agreed. Shipping charges may be non-refundable unless the return results from an error by Adventure Works Inc. or a defective product.
- **Exchanges:** Product exchanges are subject to stock availability. If the requested replacement product is unavailable, an alternative product or refund may be offered.
- **Warranty:** Products may include manufacturer warranties where applicable. Adventure Works Inc. will assist customers with warranty claims where appropriate, but manufacturer warranty terms remain the responsibility of the manufacturer unless otherwise required by law.
- **Product Descriptions:** Adventure Works Inc. makes reasonable efforts to ensure product descriptions, specifications, sizing information, and images are accurate. Minor variations in color, appearance, packaging, or specifications may occur and do not necessarily constitute defects.
- **Sizing:** Clothing, footwear, helmets, protective equipment, and similar products should be selected according to the provided sizing information. Customers are responsible for choosing the correct size, and Adventure Works Inc. cannot guarantee fit for every individual.
- **Bicycle Assembly:** Some bicycles may require partial assembly, adjustment, or professional inspection before use. Customers should follow all assembly instructions and safety guidance provided with the product.
- **Safety Equipment:** Customers are encouraged to use appropriate protective equipment, including helmets, pads, reflective clothing, and other safety gear, whenever participating in sporting or recreational activities.
- **Proper Use:** Products must be used only for their intended purpose and in accordance with all instructions, warnings, and safety recommendations. Improper use, misuse, modification, neglect, or unauthorized repairs may void applicable warranties.
- **Children's Products:** Products intended for children should always be used under appropriate adult supervision where recommended. Customers are responsible for ensuring products are age-appropriate.
- **Sports Equipment:** Participation in sports, cycling, outdoor recreation, fitness activities, and hobbies involves inherent risks. Customers accept responsibility for using products safely and within their intended limitations.
- **Maintenance:** Customers are responsible for routine maintenance, cleaning, inspection, and servicing of products, including bicycles, sporting equipment, footwear, and other items requiring regular care.

- **Electrical Products:** Rechargeable or battery-powered products should be used, stored, and charged according to the manufacturer's instructions. Only compatible chargers and accessories should be used.
- **Gift Cards:** Gift cards are redeemable for eligible purchases and may not be redeemable for cash except where required by law. Lost or stolen gift cards may not be replaceable unless permitted under applicable policies.
- **Loyalty Programs:** Participation in loyalty or rewards programs is voluntary and subject to separate program rules. Adventure Works Inc. reserves the right to modify or discontinue loyalty benefits at any time.
- **Customer Accounts:** Customers creating online accounts are responsible for maintaining the confidentiality of their login credentials and for all activity occurring under their accounts.
- **Privacy:** Personal information collected during purchases will be processed in accordance with Adventure Works Inc.'s Privacy Policy and applicable data protection laws. Information will be used only for legitimate business purposes, including order fulfillment, customer service, legal compliance, and, where permitted, marketing communications.
- **Marketing Communications:** Customers may opt in to receive promotional communications and may unsubscribe at any time using the methods provided in those communications.
- **Intellectual Property:** All trademarks, logos, product names, website content, graphics, photographs, and marketing materials belonging to Adventure Works Inc. remain its intellectual property or that of its licensors and may not be reproduced without permission.
- **Website Use:** Customers agree not to misuse Adventure Works Inc.'s website, interfere with its operation, attempt unauthorized access, upload malicious software, or engage in fraudulent activity.
- **Customer Conduct:** Adventure Works Inc. reserves the right to refuse service to individuals engaging in abusive, threatening, fraudulent, discriminatory, or unlawful conduct toward employees, customers, or business partners.
- **Force Majeure:** Adventure Works Inc. shall not be liable for delays or failures resulting from events beyond its reasonable control, including natural disasters, pandemics, labor disputes, transportation disruptions, cyber incidents, government actions, or supplier shortages.
- **Limitation of Liability:** To the fullest extent permitted by applicable law, Adventure Works Inc.'s liability for any claim arising from the sale of products shall be limited to the purchase price of the affected product. Nothing in these terms excludes or limits liability that cannot legally be excluded, including liability for death or personal injury caused by negligence where applicable.
- **Consumer Rights:** Nothing in these Terms and Conditions limits or excludes any statutory consumer rights available under applicable consumer protection laws. Where these terms conflict with mandatory legal rights, the applicable law shall prevail.

- **Governing Law:** These Terms and Conditions shall be governed by the laws of the jurisdiction in which the purchase is made, unless otherwise required by applicable consumer protection legislation.
- **Dispute Resolution:** Customers are encouraged to contact Adventure Works Inc. first to resolve any concerns. Where disputes cannot be resolved informally, they may be addressed through applicable courts, consumer protection authorities, mediation services, or other dispute resolution mechanisms available under local law.
- **Severability:** If any provision of these Terms and Conditions is determined to be invalid, illegal, or unenforceable, the remaining provisions shall remain in full force and effect.
- **Entire Agreement:** These Terms and Conditions, together with any applicable return policy, warranty information, privacy policy, and order confirmation, constitute the entire agreement between Adventure Works Inc. and the retail customer regarding the purchase of products.
- **Changes to Terms:** Adventure Works Inc. reserves the right to update or revise these Terms and Conditions from time to time. Updated terms will apply to purchases made after the revised version becomes effective, unless otherwise required by law.